

Colorado Paid Family & Medical Leave (PFML) Plan Notice

In 2020, Colorado voters approved Proposition 118, ensuring that all Colorado workers have access to paid leave to take care of themselves and their family while experiencing life circumstances that may prevent them from being able to work. The Paid Family and Medical Leave Insurance (FAMLI) program is set to begin paying benefits on January 1, 2024.

MSU Denver has partnered with Sun Life Assurance Company of Canada (“Sun Life”) to implement FAMLI for MSU Denver employees and provide paid family and medical leave administration and benefits starting on January 1, 2024. Plan benefits are available to most Colorado employees who have a qualifying condition and who earned \$2,500 over the previous year for work performed in Colorado.

Employee contribution to premium

- MSU Denver has chosen to pay the premium on behalf of all eligible MSU Denver employees.
- FAMLI contributions will not be collected via payroll from MSU Denver employees who reside in Colorado.

Benefits

- Qualifying conditions for paid family and medical leave include:
 - Caring for a new child during the first year after the birth, adoption or foster care placement
 - Caring for a family member with a serious health condition
 - Caring for your own serious health condition
 - Making arrangements for a family member’s military deployment
 - Obtaining safe house, care, and/or legal assistance in response to domestic violence, stalking, sexual assault or sexual abuse
- Employees are entitled to up to 12 weeks of paid family and medical leave per year. Employees with serious health conditions caused by pregnancy complications or childbirth complications are entitled to up to 4 more weeks of paid family and medical leave per benefit year for a total of 16 weeks. Leave can be taken continuously, intermittently or on a reduced schedule.
- If FAMLI leave is used for a reason that also qualifies as leave under the federal FMLA, then the leave will also count as FMLA leave used.
- Employees may choose to use sick leave or other paid time off before using FAMLI benefits, but they are not required to do so.
- Employers and employees may mutually agree to supplement FAMLI benefits with sick leave or other paid time off in order to provide full wage replacement.

Benefit calculation

- Benefits will be paid at a rate of up to 90% of the employee’s average weekly wage, based on a sliding scale. The calculation and maximum benefit will be as announced by the Division of Family and Medical Leave Insurance (FAMLI).

Filing claims

- **Submit online:** Sign into your Sun Life account at www.sunlife.com/account and click “Submit a claim”.
- **Submit by mail:** Access a claim form by going to www.sunlife.com/findaform and selecting “Short Term Disability” under the Employee Benefits Forms section, or by contacting us at 800-247-6875, Mon - Fri, 8:00 a.m. to 8:00 p.m. ET.
- Requests for a review of an initial claim determination should be made to Sun Life. If further

reconsideration is required, employees can appeal to the FAMLI Division at famli.colorado.gov.

Job protection and continued benefits

- Employers must maintain health care benefits for employees while they are on leave under this program, and both the employer and the employee remain responsible for paying for those benefits in the same amounts as before the leave began.
- An employee who has worked for the employer for at least 180 days is entitled to return to the same position, or an equivalent position, upon their return from FAMLI leave.

Retaliation, discrimination and interference prohibited

- Employers may not interfere with employees' rights under FAMLI and may not discriminate or retaliate against them for exercising those rights.
- Employees who suffer retaliation, discrimination or interference may file suit in court, or may file a complaint with the FAMLI Division.